

Ground 2 - Sale by mortgagee

MANDATORY GROUND | OFFICIAL NOTICE POSITION: 4 months

Use this editable form to gather the factual information and documents for the route named above. It does not confirm eligibility, decide which ground to use, replace legal advice or guarantee a court outcome.

1 Landlord, property and tenancy

Landlord full name

Email / telephone

Rental property address

Tenancy start date

All named tenants

Brief factual summary of why this ground may apply

2 Ground-specific eligibility questions

Who is the mortgagee or lender seeking possession?

What mortgage default or enforcement action has occurred?

Why is possession needed to sell the property?

What authority and property evidence supports the lender's position?



3

Evidence checklist

Tick the material held and attached. Use the reference box to identify the actual file, date or document source.

Evidence / document	Held	Attached	Reference, date or file name
Mortgage / charge evidence	☐	☐	
Lender appointment or authority	☐	☐	
Default / enforcement correspondence	☐	☐	
Property title	☐	☐	
Tenancy agreement	☐	☐	
Court or lender notices	☐	☐	

4

Timeline, notice facts and declaration

Key events and dates in chronological order

Tenant response, possible defence, safeguarding issue or other relevant information

Has any notice already been served? Give date / method

Proof of service held

☐ Facts are true to the best of my knowledge ☐ I have authority to share these documents ☐ I understand this is not legal advice or representation

Landlord signature (type full name)

Date